

1.

CASE #	CASE NAME	HEARING NAME
CVRI2400432	DUNAYEVICH VS ATLAS COPCO TOOLS & ASSEMBLY SYSTEMS LLC	MOTION FOR SUMMARY JUDGMENT OR IN THE ALTERNATIVE SUMMARY ADJUDICATION

Tentative Ruling: The motion of Vulcan Company, Inc., for summary judgment is granted. Vulcan's evidentiary objections are sustained.

Analysis:

Vulcan's two evidentiary objections are sustained on the grounds stated by Vulcan. Objection #1 is sustained on the additional ground that it lacks any credibility. The cutter in exhibit 5 of the plaintiff's deposition obviously bears no resemblance to the cutter in exhibit 6.

UMF#15 (that the district's computers used the same item description for 1 1/8 inch asphalt cutter shanks regardless of the manufacturer) is supported by the evidence cited by Vulcan and is not contradicted by the evidence cited by the plaintiff. Therefore, the plaintiff's citations to evidence that an asphalt cutter of the same description was issued to him, or that he recognized cutters of that description, do not create a disputed issue of material fact that the cutter used at the time of the accident was manufactured by Vulcan.

Similarly, the design features of Vulcan cutters are undisputed. (UMF 10.) The evidence cited by Vulcan supports its assertion that the cutters involved in the accident differ in design from those manufactured by Vulcan. (UMF 11.) Although the plaintiff disputes that assertion, the evidence on which it relies does not create a disputed issue of material fact, because all the various documents use the ambiguous item description that fails to distinguish between those cutters manufactured by Cutter and those from some different manufacturer.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2402839	BARTELS VS REGENTS OF THE UNIVERSITY OF CALIFORNIA	MOTION TO COMPEL FURTHER RESPONSE AGAINST DEFENDANTS BOMOTTI, WILSON WATKINS, MUELLER, UHRICH, HEDYATI, STARK & JESKE

Tentative Ruling: The hearing on the motion to compel is continued to 8-6-26 at 8:30 A.M. in this department. No later than 7-15-26, the parties shall meet and confer either in person, by telephone, or by videoconference in an effort to resolve their discovery

disputes. (Code Civ. Proc., § 2016.040, subd. (a).) If the parties are entirely successful, the plaintiff shall promptly file and serve a notice that the motion is withdrawn. If the parties have not entirely resolved the disputes, then no later than 7-27-26, (1) the parties shall file a joint statement listing the issues that were not resolved and (2) the moving party shall file a declaration describing the parties' efforts to meet and confer.

Analysis:

The moving party's effort to meet and confer was limited to a letter. Unless followed up by a personal meeting, telephone conversation, or video conference, a letter alone does not comply with section 2016.040 and does not constitute a reasonable and good-faith effort.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2404781	COLOCHO VS CITY OF EASTVALE	MOTION FOR RELIEF FROM ORDER DEEMING REQUESTS FOR ADMISSION ADMITTED AND TO PERMIT WITHDRAWAL OF DEEMED ADMISSIONS

Tentative Ruling: The plaintiff's motion for relief from deemed admissions is granted on the condition that, no later than July 23, 2026, plaintiff's counsel pay to the City, through the City's attorney of record, the sum of \$8,295, consisting of (a) \$735, the sanctions previously ordered of \$735 and (b) \$7,560, the costs incurred in reliance upon the order deeming admissions.

Analysis:

The multiple failures of plaintiff's counsel –in failing to serve a verification in a timely fashion, in failing to oppose the motion to deem admissions, and in failing to promptly move for relief from the deemed admissions -- are inexcusable. However, unlike *Hearn v. Howard* (2009) 2009 177 Cal.App.4th 1193, none of those failures are due to the negligence or poor judgment of the plaintiff herself. Moreover, the prejudice to the City can be cured by the reimbursement of the expenses incurred by the City in reliance on the deemed admissions. Under those circumstances, the policy favoring trial on the merits prevails.